Supreme Court, U.S.
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IN THE

Supreme Court of the United States

OCTOBER TERM, 1997

CITY OF WEST COVINA,
Petitioner,

vs.

LAWRENCE PERKINS; CLARA PERKINS;
APRIL PERKINS, a minor, by and through
LAWRENCE PERKINS,
Respondents.

ON PETITION FOR WRIT OF CERTIORARI
TO THE UNITED STATES COURT OF APPEALS
FOR THE NINTH CIRCUIT

PETITION FOR WRIT OF CERTIORARI

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QUESTIONS PRESENTED

1. Whether the procedural component of the Fourteenth Amendment's Due Process Clause requires a police department to provide legal advice and guidance concerning how to pursue post-deprivation judicial remedies for the return of property seized during the execution of a search warrant.

2. Whether the balancing test set forth in Mathews v. Eldridge, 424 U.S. 319, 96 S. Ct. 893, 47 L. Ed. 2d 18 (1976) should be used by federal courts to expand procedural rights in the context of post-deprivation remedies.

LIST OF PARTIES (Rule 14.1(b))

The petitioner and defendant City of West Covina is the only defendant from the proceedings below involved in this Petition. Other defendants who are not parties to this Petition include defendants Ferrari, Melnyk, Shimanski, Aldecoa, O'Brien, Nalian and Heieck, and the City of Los Angeles.

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PETITION FOR WRIT OF CERTIORARI

OPINIONS BELOW

The opinion of the Court of Appeals for the Ninth Circuit was reported at 113 F.3d 1004 (9th Cir. 1997), was filed on May 9, 1997, and is reprinted at Appendix A.

The United States District Court of the Central District of California's unreported memorandum order postponing and bifurcating the respondent's procedural due process claim was filed on May 10, 1994, and is reprinted at Appendix B.

The United States District Court of the Central District of California's unreported memorandum order granting petitioner City of West Covina's motion for summary judgment on the procedural due process claim was filed on June 25, 1996, and is reprinted at Appendix D.

JURISDICTION

Petitioner City of West Covina respectfully prays that a writ of certiorari issue to review the judgment and opinion of the United States Court of Appeals for the Ninth Circuit, entered on May 9, 1997. (App. A 1.)

The United States District Court of the Central District of California's Judgment was filed on August 3, 1994, and is reprinted here as Appendix C. On May 23, 1997, petitioner filed a timely petition for rehearing and suggestion for rehearing en banc in the Ninth Circuit. On October 22, 1997, the Ninth Circuit denied the petition for rehearing, and rejected the suggestion for rehearing en banc. (App. F1.) One active judge requested a vote on whether to rehear the matter en banc, but the matter failed to receive a majority of the votes of the nonrecused active judges. (Id.)

The petition is filed within 90 days of the entry of such denial pursuant to 28 U.S.C. § 2101 (c) and U.S. Supreme Court Rule 13.4. The jurisdiction of this Court to review the judgment of the Ninth Circuit is invoked under 28 U.S.C. section 1254(1).

CONSTITUTIONAL/STATUTORY PROVISIONS

The following statutory and constitutional provisions relevant to this petition are set forth in appendices as follows:

1. Fourteenth Amendment of the United States Constitution, Section 1 at Appendix G

2. 42 U.S.C. Section 1983 at Appendix H

3. California Penal Code section 1536 at Appendix I

4. California Penal Code section 1540 at Appendix J

STATEMENT

Plaintiffs and Respondents Clara and April Perkins sued the City of West Covina (hereinafter "City") and various detectives and officers of the City of West Covina, alleging various Fourth Amendment violations arising out of the execution of a search warrant, and seizure of a "starter pistol" and $2,469.00 in cash.

On May 10, 1994, the district court granted summary adjudication in favor of the individual officers with respect to several of respondents' Fourth Amendment claims against the individual officers, and granted summary adjudication in favor of the City insofar as it sought to state a claim against the City for the police officer's search of respondents' residence. (App. B 4.) However, the

district court postponed ruling on an *unalleged* procedural due process claim that the post-deprivation judicial remedy for return of the seized property was inadequate, and ordered further briefing. (App. B 6-7.) Respondent never filed an amended complaint adding this unalleged claim, and the district court did not rule on this claim prior to entry of the final judgment.

Judgment was entered in favor of all these defendants on August 4, 1994, and respondent appealed on August 31, 1994. (App. C 1). On April 30, 1996, the Ninth Circuit remanded the case to the district court to clarify and resolve the procedural due process issue. (App. D 1.)

On remand, the district court granted summary judgment in favor of the City, holding that respondent waived any claim concerning the adequacy of the post-deprivation judicial remedy provided by Penal Code section 1536, which provides that

> All property or things taken on a warrant must be retained by the officer in his custody, subject to the order of the court to which he is required to return the proceedings before him, or of any other court in which the offense in respect to which the property or things taken is triable.

The court reasoned that the waiver rule applied because "'the evidence shows at most that the respondent made one trip to the Municipal Court, was advised that there was no file in his name and ceased any efforts to obtain an order returning his property. He filed nothing, he made no inquiry about the procedures . . . .'" (App. E 7.)

The district court also refused to excuse respondents' failure to avail themselves of this judicial/statutory remedy on the grounds that the City failed to give "notice" of the remedy. (App. E 7.) The court found that respondent "was told that he had to get a court order to get his property back, he was told what court and what judge to go to, and he was given the date of the warrant and of the

search." (App. E 7.) Therefore, "[t]he City's failure to give Perkins formal notice of the procedure did not render that procedure "inadequate to the point that it [wa]s meaningless or nonexistent." (Id.)

On appeal, a two-judge majority of the Ninth Circuit Court of Appeals reversed summary judgment in favor of the City, and directed the district court to enter summary judgment in favor of respondents. The court of appeals determined that under Parratt v. Taylor, 451 U.S. 527, 539, 101 S. Ct. 1908, 1915, 68 L. Ed. 2d 420 (1981), there was "no requirement of a prior hearing before the seizure of possessions under the search warrant." The court also found that California Penal Code sections 1536, 1540, and state mandamus proceedings, provided "adequate" post-deprivation judicial remedies to recover the property. (App. A 17; App. J, K.)

The court of appeals acknowledged that respondents were told by a City police officer that they had to obtain a court order for the return of the property, and acknowledged that the officers executing the warrant left a note at the search site which stated:

To Whom it May Concern:

1. These premises have been searched by peace officers of the West Covina Police Department pursuant to a search warrant issued on 5-20-93, by the Honorable Dan Oki, judge of the Municipal Court, Citrus Judicial District.

2. The search was conducted on 5-21-93. A list of the property seized pursuant to the search warrant is attached.

3. If you wish further information, you may contact Det. Ferrari or Det. Melnyk at [telephone number].

(App. A 4-5.) The form also listed "Lt. Schimanski"'s name and his telephone number. (App. A 5.)

The court of appeals also acknowledged that "the search warrant was listed in a public document with the court clerk by the address where the search occurred, along with the number of the search warrant." (App. A 6.)

Nonetheless, the court held that petitioner violated respondents' procedural due process rights by failing to provide adequate post-deprivation "notice" of this judicial remedy which, according to the court, was required under Memphis Light, Gas, & Water Div. v. Craft, 436 U.S. 1, 98 S. Ct. 1554, 56 L. Ed. 2d 30 (1978), and the balancing test set forth in Mathews v. Eldridge, 424 U.S. 319, 96 S. Ct. 893, 47 L. Ed. 2d 18 (1976). (App. A 17-20.) Specifically, the City violated respondents' rights by failing to include in the note left at the search site "the availability of a judicial remedy should he wish to claim his property," or to "provide some guidance for invoking that remedy." (App. A 18.) The court held that, at minimum, the "note" left on the premises must not only include the information which was provided in this particular case, but also the following:

> the notice must inform the recipient of the procedure for contesting the seizure or retention of the property taken, along with any additional information required for initiating that procedure in the appropriate court. In circumstances such as those presented by this record, the notice must include the search warrant number or, if it is not available or the record is sealed, the means of identifying the court file. It also must explain the need for a written motion or request to the court stating why the property should be returned.

(App. A 22.)

At the same time, however, the court of appeals acknowledged that the trial court has exclusive authority

over the procedures for obtaining the release of seized property:

> "[o]fficers seizing property do so on behalf of the court for use in a judicial proceeding, and they must respond to court orders to release the property. (Citation). The officers have no right in the property or in its possession, *and have no authority over it except as the court may order.*" (Citation [emphasis added].)

(App. A 16.)

REASONS FOR GRANTING THE PETITION

This Court should grant the Petition for Certiorari. The court of appeals creation of a new procedural right to "notice" in the form of legal advice concerning post-deprivation judicial remedies is not only erroneous, but also inconsistent with decisions of this Court and decisions in numerous circuit courts of appeals. Moreover, by imposing section 1983 liability under this new procedural right over and above that provided by admittedly adequate state law remedies, the published decision raises serious concerns relating to principles of comity and federalism.

I. THE COURT OF APPEALS ERRONEOUSLY CREATED A NEW *NOTICE* REQUIREMENT IN POST-DEPRIVATION PROCEDURAL DUE PROCESS CASES IN A MANNER THAT CONFLICTS WITH THIS COURT'S DECISIONS AND DECISIONS IN OTHER CIRCUITS.

This Court's decisions, as well as the decisions in other circuits, have recognized two different categories of

procedural due process claims, and have articulated a framework for determining whether the particular procedures at issue provide due process. In "pre-deprivation" cases, a public entity (usually, an administrative agency) has authorized certain procedures to be followed before a deprivation can occur. In this category of cases, the Court employs the balancing test set forth in Mathews v. Eldridge, supra, to determine whether the "notice" given and the procedures made available provide an meaningful opportunity to be heard prior to the deprivation of a property or liberty interest. Mathews v. Eldridge, 424 U.S. at 341-349, 96 S. Ct. at 905-910 (weighing the disability claimant's interest in continued disability benefits, the fairness and reliability of existing pre-termination procedure, the probable value of additional procedural safeguards, and the burden of such additional safeguards, due process does not require an evidentiary hearing prior to the discontinuance of disability benefits); Memphis Light, Gas, & Water Div. v. Craft, 436 U.S. 1, 16-19, 98 S. Ct. 1554, 1564-65 (Mathews factors require, municipal utility company to provide notice of internal procedures for protesting the proposed termination of utility services before termination); Dixon v. Love, 431 U.S. 105, 112-115, 97 S. Ct. 1723, 1727-29, 52 L. Ed. 2d 172 (1977) (no evidentiary hearing required under Mathews factors prior to revocation of license for outstanding traffic tickets because respondent has opportunity for full judicial hearing in the underlying traffic convictions).

However, this Court, as well as other circuit courts, also recognize a second category of cases which involve "post-deprivation" judicial or statutory remedies to correct a deprivation that has already occurred. In these cases the analysis set forth in Mathews v. Eldridge, supra, has been applied in determining whether some form of pre-deprivation notice and hearing is required, and the court has determined that "the value of predeprivation safeguards

[e.g., notice and an opportunity to be heard before the deprivation] -- is negligible in preventing the kind of deprivation at issue." Zinermon v. Burch, 494 U.S. 113, 129, 110 S. Ct. 975, 985, 108 L. Ed. 2d 100 (1990); see also Decker v. Hillsborough County Attorney's Office, 845 F.2d 17 (1st Cir. 1988) (state's failure to return a criminal defendant's property to him immediately upon his acquittal did not constitute deprivation of property without due process because the state statute provided judicial procedures through which to assert his property right); Murphy v. Collins, 26 F.3d 541, 543 (5th Cir. 1994) (no procedural due process violation where prisoner's property confiscated in violation of the prison's procedures because prisoner could pursue a tort action for conversion); Ramsey v. Board of Education of Whitley County, 844 F.2d 1268 (6th Cir. 1988) (no procedural due process violation where school district unilaterally reduced teacher's compensation for sick leave days because teacher could pursue breach of contract action); Barnett v. Centoni, 31 F.3d 813, 816 (9th Cir. 1994) (no procedural due process violation where a state inmate's prison status was downgraded in a disciplinary action because California law provided an adequate post-deprivation remedy for any property deprivation); New Alaska Dev. Corp. v. Guetschow, 869 F.2d 1298, 1305 (9th Cir. 1989) (the *availability* of "post-deprivation state law remedies provides all the process due" for a court-appointed receiver's alleged misappropriation of funds in a divorce proceeding).

In post-deprivation cases, the available judicial or statutory remedies are not inadequate simply because recovery might be difficult, time-consuming, speculative, or uncertain). Parratt v. Taylor, 451 U.S. at 543-44, 101 S. Ct. at 1917 (since the state tort remedy was available at the time of the plaintiff's loss and he failed to use it, he failed to state a procedural due process claim); United States v. An Article of Device "Theramatic", 715 F.2d

1339, 1342-43 (9th Cir. 1983) (rejecting plaintiff's claim that a post-seizure judicial hearing was inadequate because it put the "burden on defendant to request a hearing"); Easter House v. Felder, 910 F.2d 1387, 1405-06 (7th Cir. 1990); Vicory v. Walton, 721 F.2d 1062, 1065-66 (6th Cir. 1983), *cert. denied*, 469 U.S. 834 (1984) ("in section 1983 damage suits for deprivation of property without procedural due process the plaintiff must plead and prove that state remedies for redressing the wrong are inadequate").

All of these decisions hold that the *availability* of adequate post-deprivation judicial or statutory remedies satisfies the procedural component of the Due Process Clause if the remedies provide the aggrieved party with an adequate mechanism to correct a deprivation that has already occurred. None of these cases even remotely suggest that due process requires a municipality, who has no authority over the property in question or the procedures necessary to invoke these remedies, to provide advance legal advice or information concerning how to pursue the remedies after a deprivation has occurred but before an aggrieved party invokes the judicial remedy.

In Parratt v. Taylor, 451 U.S. 527, 101 S. Ct. 1908, 1917, prison officials lost a prisoner's personal property. After balancing the relevant interests, this Court determined that the normal "predeprivation notice and opportunity to be heard" was "pretermitted," and that the state tort claims act provided an adequate post-deprivation remedy. (Id. at 538-539, 541, 543-44, 101 S. Ct. 1914, 1916-17.) This Court rejected plaintiff's claim that the state tort claims remedy for unlawful destruction of property was inadequate because "it provides only for an action against the State as opposed to its individual employees, it contains no provisions for punitive damages, and there is no right to a trial by jury." 451 U.S. at 543-44, 101 S. Ct. at 1917. The court reasoned thus:

> Although the state remedies may not provide the respondent with all the relief which may have been available if he could have proceeded under § 1983, that does not mean that the state remedies are not adequate to satisfy the requirements of due process.

Id. at 543, 101 S. Ct. at 1915. Since the state tort remedy was available at the time of the plaintiff's loss and he failed to use it, he failed to state a procedural due process claim. Id.

Similarly, in Hudson v. Palmer, 468 U.S. 517, 104 S. Ct. 3194, 82 L. Ed. 2d 393 (1984) a prisoner alleged that during the search of his cell, a prison guard deliberately and maliciously destroyed some of the prisoner's possessions. This Court determined that correctional officers were not in a position to provide a predeprivation procedure, and that under Virginia law, the prisoner's right to sue the correctional officer under state law for conversion or detinue provided all the process that was due. Id. at 534-35, 104 S. Ct. at 3204. The Court rejected plaintiff's argument that state law remedies should be deemed inadequate because they were "far from certain and complete," observing that the fact that an injured party "might not be able to recover under [state law] remedies the full amount which he might receive in a section 1983 action is not . . . determinative of the adequacy of the state remedies. (Citation)" 468 U.S. at 535, 104 S. Ct. at 3204-05.

Similarly, in Easter House v. Felder, 910 F.2d 1387, 1405-06 (7th Cir. 1990), plaintiff, a daycare provider, sued a state licensing agency and its employees for allegedly depriving them of a property interest because of the agency's delay in renewing the provider's daycare license. The court held that various post-deprivation tort remedies provided all the process that was "due" even though "the state road to recovery" might be a "lengthy and speculative process":

> We note that almost all litigation, whether conducted in a state or federal forum, may be characterized as a lengthy and speculative process. Litigants often decry the speed with which court's administer justice and likewise lament that a particular forum may yield a more favorable result depending upon the nature of the claim and the particular position they support. However, we should not reject the application of Parratt unless the remedy which an injured party may pursue in state court can be readily characterized as inadequate to the point that it is meaningless or nonexistent and, thus, in no way can be said to provide the due process relief guaranteed by the fourteenth amendment.

Id. at 1406; see also, Economic Dev. Corp. v. Stierheim, 782 F.2d 952, 955-56 (11th Cir. 1986) (state law tort remedies provide all the process that is due even if relief under section 1983 would be greater).

As the majority acknowledges, under California law the authority over these judicial remedies is vested exclusively in the court system. (App. A 16.) As such, the judicial remedies are indistinguishable from the category of judicial or statutory remedies available to civil rights plaintiffs in cases such as Parratt v. Taylor, supra, Hudson v. Palmer, supra, and numerous decisions in the circuit courts of appeal.

Despite these decisions, the court of appeals essentially concluded that a municipality's failure to provide adequate advice at the search site concerning how to pursue the judicial remedies available under California Penal Code sections 1536 and 1540 rendered the judicial remedy too burdensome. Clearly, the decision is based on the same argument repeatedly *rejected* by this Court and other circuit courts, namely, that a post-deprivation remedy is

inadequate if the remedy is burdensome, lengthy, uncertain, or speculative.

Moreover, the analysis set forth in Mathews v. Eldridge, supra, and applied in Memphis Light, Gas, & Water Div. v. Craft, supra, provides no support for this expansion of procedural rights in the context of post-deprivation remedies. In Memphis Light, this Court held that a municipal utility agency subject to control by the municipality had a constitutional duty to provide "notice" of available internal administrative procedures for disputing utility bills prior to discontinuance of gas and electricity. 436 U.S. at 4, 14-15, 98 S. Ct. at 1557, 1563. Two critical facts, absent in the present case, were essential to this Court's determination. First, the municipal utility had authority over the "res" in question, namely, the distribution of utility services deemed to be "essential" to the health and well-being of customers. Id. at 4, 19-20, 98 S. Ct. at 1537, 1559, 1565.

Second, the municipal utility had developed dispute resolution procedures as required by state law. Id. at 15, 98 S. Ct. at 1563, n. 16. Pursuant to that authority, the utility developed detailed internal procedure for the resolution of disputed bills prior to a proposed termination. Id. at 5, n. 4, 13, 98 S. Ct. at 1559, n. 4, 1562 ("'The billing of customers, the determination as to when a final notice is sent, and the termination of service [are] governed by policies, rules and regulations adopted and approved by the Board of Commissioners of MLG&W.' (Citation)."). In other words, the municipal utility's duty to provide such procedures and its *authority* over the distribution of the property at issue gave rise to a constitutional duty to provide adequate "notice" of its internal administrative procedure prior to a termination of *life-essential* utility services.

In the present case, state law does not impose a duty on municipalities to provide procedures for the return of

seized property, but imposes that duty on the court. Moreover, a municipality has no authority over the disposition of property seized pursuant to a search warrant and, unlike the property in Memphis Light, supra, such property is not "essential" to well-being and health of the aggrieved party. As the court of appeals acknowledged, California *courts* have exclusive authority over such property, and policing agencies cannot release property it except by court order. (App. A 16.) While a municipality may have information that might be helpful to pursue these remedies, it does not follow that it has a constitutional duty to provide that information after a deprivation has already occurred and before an aggrieved party seeks to invoke the remedy. Cf. Hudson v. Palmer, 468 U.S. at 534 (rejecting argument that "because an agent of the state who intends to deprive a person of his property can provide predeprivation process, then as a matter of due process he must do so.")

Because the court of appeals ignored these critical distinctions altogether, it is unsurprising that the court also erroneously assumed that a municipality--rather than the courts or respondents' counsel--was required to provide information concerning how to invoke and pursue this judicial remedy.[1]

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[1] Petitioners note that although respondents argued that they were not given "notice" of the relevant judicial remedies, the court of appeals--not the respondents--articulated this new theory based on the analysis set forth in Memphis Light, supra, a decision that was neither cited nor briefed by the parties. As a result, the two-judge majority articulated a new procedural right without the benefit of an adversarial perspective that could have been presented had the court requested additional briefing, further oral argument, or granted the petition for rehearing and suggestion for

For example, the court of appeals chastised the police department for failing to

> mention the availability of any procedure for protesting the seizure of his property, let alone the existence of a formal judicial procedure for obtaining return. It did not provide essential information necessary to invoke that procedure: the search warrant number, the method for obtaining the number from the municipal court (such as the need to furnish the court with the address searched), or the necessity of a written request for return of the property.

(App. A 19.)

Two erroneous assumptions underlie this conclusion. First, as the court of appeals acknowledges, the police department advised respondent and his counsel of this "judicial remedy," but respondents failed to pursue it *through the court system*. (App. A 5; E 3.) However, it is largely irrelevant whether or not respondents were informed by the *police department* what their judicial remedies were--the judicial remedies are provided by law, and respondents are presumed to know the law. Texaco, Inc. v. Short, 454 U.S. 516, 533, 102 S. Ct. 781, 793-794, 70 L. Ed. 2d 738 (1982) ("It is well established that persons owning property within a State are charged with knowledge of relevant statutory provisions affecting the control or disposition of such property.")

Second, the court of appeals references "a number of telephone calls [made by respondents] to the city's police station . . . and a trip to the municipal court." (App. A 19.) The majority appears to conclude that the police department had a constitutional duty to inform respondents of the *court's* procedures for obtaining the release of the

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rehearing en banc.

property. (App. A 22 ("the notice must inform the recipient of the procedure for contesting the seizure or retention of the property taken") Unfortunately, the court of appeals' conclusion ignores the fact that a police department has no authority over how these judicial procedures operate.

Moreover, nothing in the record supports the court's conclusion. Respondent failed to introduce any evidence concerning what the proper court procedures were for invoking and pursuing this remedy, or what information they lacked which was necessary to pursue this remedy. (App. E 6 ("there is no evidence either way about whether one must have the warrant number in order to obtain a court order releasing seized property").

A municipality has no authority over court procedures governing the return of lawfully seized property, anymore than a municipality has control over the means through which a tort action can be prosecuted. Nonetheless, the court of appeals, on pain of section 1983 liability, has imposed an on-going *constitutional* duty on police departments to research, monitor, and identify potential weaknesses in these court procedures relating to the return of seized property, and to provide information concerning these court procedures after a deprivation has occurred but before the remedy is invoked by an aggrieved party. This result not only ignores this Court's decisions relating to post-deprivation remedies--which place the burden on an aggrieved party to avail himself of "adequate" post-deprivation judicial or statutory remedies--but also finds no support in Memphis Light, supra.

II. THE QUESTION PRESENTED IS IMPORTANT.

The two-judge majority's use of the Mathews analysis to create new "procedural" rights in the area of post-

deprivation remedies is also inconsistent with this Court's continued efforts to prevent federal courts from converting the Fourteenth Amendment into *"a font of tort law to be superimposed upon whatever systems may already be administered y the States."* Parratt v. Taylor, 451 U.S. at 544, 101 S. Ct. 1917.

Understandably concerned with principles of comity and federalism, this Court has attempted to curtail efforts by federal courts to expand substantive and procedural rights under the Due Process Clause. Efforts to expand substantive rights under the Fourteenth Amendment were rebuked by this Court in Graham v. Connor, 490 U.S. 386, 109 S. Ct. 1865, 104 L. Ed. 2d 443 (1989), and Albright v. Oliver, 510 U.S. 266, 114 S. Ct. 807, 127 L. Ed. 2d 114. In these decisions, the Court expressed concern over the constitutionalization of state law by the creation of additional "substantive" due process rights over and above those rights that are already protected under specific provisions of the Bill of Rights. 490 U.S. at 394-395, 109 S. Ct. at 1870-1871; 510 U.S. at 273-74, 114 S. Ct. at 813.

Similarly, this Court has rebuked efforts to expand procedural rights in cases such as Parratt v. Taylor, supra, and Hudson v. Palmer, supra, where a state has eliminated the need for federal protection by providing adequate post-deprivation judicial or statutory remedies. In Parratt v. Taylor, the Court relied on principles of comity and federalism to reject a prison inmate's argument that he had a right to predeprivation procedures even though the state provided an adequate tort remedy to compensate him for the loss of his property interest:

> To accept respondent's argument that the conduct of state officials in this case constituted a violation of the Fourteenth Amendment would necessarily result in turning every alleged injury which may have been inflicted by a state official . . . into a violation

> of the Fourteenth Amendment cognizable under § 1983. It is hard to perceive any logical stopping place to such a line of reasoning. Presumably, under this rationale any party who is involved in nothing more than an automobile accident with a state official could allege a constitutional violation under § 1983. Such reasoning "would make of the Fourteenth Amendment a font of tort law to be superimposed upon whatever systems may already be administered by the States. (Citation)."

Id. at 544, 101 S. Ct. 1917.

More recently, members of this Court in Albright v. Oliver, supra, recognized the importance of these principles. In Albright v. Oliver, justices Kennedy and Thomas found that the availability of an alternative state remedy for malicious prosecution precluded a claim under the Due Process Clause for initiation of criminal charges without probable cause, reasoning thus:

> The commonsense teaching of *Parratt* is that some questions of property, contract, and tort law are best resolved by state legal systems without resort to the federal courts, even when a state actor is the alleged wrongdoer. As we explained in *Parratt*, the contrary approach 'would almost necessarily result in turning every alleged injury which may have been inflicted by a state official acting under 'color of law' into a violation of the Fourteenth Amendment cognizable under § 1983 . . . . The *Parratt* principle respects the delicate balance between state and federal courts and comports with the design of § 1983, a statute that reinforces a legal tradition in which protection for persons and their rights is afforded by common law and the laws of the states, as well as by the Constitution. (Citation.)

510 U.S. at 283, 114 S. Ct. at 818-19.

Vicory v. Walton, 721 F.2d 1062, 1063 (6th Cir. 1983), *cert. denied*, 469 U.S. 834 (1984) provides a persuasive analysis of the principles of comity and federalism that have informed this Court's efforts to contain efforts to constitutionalization of state law remedies. In Vicory v. Walton, plaintiffs, owners of a mobile trailer seized for purposes of a criminal investigation and trial sued the City for retaining the trailer without due process of law. The court of appeals held that state tort remedies provided all the process that was due. Id. at 1065.

Foreshadowing this Court's decision in Hudson v. Palmer, supra, the court of appeals rejected plaintiff's claim that the Parratt rule did not apply to "intentional" conduct. The court reasoned that "the principle being applied does not turn on the question of whether the claimed constitutional tort affecting property is caused by intentional conduct or negligent conduct," but reflects the Supreme Court's basic determination to limit federal hearings "in procedural due process cases that can be corrected in state court." Id. at 1065. Therefore,

> [s]o long as a state's damage remedies are not shown to be inadequate in theory or practice---that is, so long as there is no systemic problem with the state's corrective process---we see no purpose to be served by further complicating section 1983 liability for damages in property cases by distinctions grounded in different types of intent, negligence and strict liability.

Similarly, in the present case respondents simply failed to present any evidence of a "systemic" problem with California's judicial remedy for the return of lawfully seized property. Nonetheless, the court of appeals created a new procedural due process right to legal advice based on respondents' inability or unwillingness in this single instance to obtain the necessary information and relief after

one visit to the court. Respondents' counsel simply failed to take the legal steps necessary to pursue this post-deprivation judicial remedy.

In light of these decisions, it is unlikely that this Court intended the analysis set forth in Mathews v. Eldridge, supra, to be used to expand procedural rights where the only evidence of "inadequacy" of a post-deprivation judicial remedy is an aggrieved party's initial difficulty in pursuing the remedy in court. The creation of this new "notice" element to assess the adequacy of post-deprivation judicial and statutory remedies not only intrudes into state's authority in the area of law enforcement, but also promises to intrude into other areas which have traditionally been regulated by the states.

In this particular case, the Ninth Circuit has imposed a burden on police departments to research court procedures--which may vary from time to time and from court to court--concerning the precise manner in which property obtained under a valid search warrant may be recovered. To avoid section 1983 liability, municipalities must fashion some sort of "notice" in the form of legal advice, update the required legal advice by monitoring court processes for any relevant changes in procedure, and provide the necessary information after a deprivation has occurred but before an aggrieved party pursues the judicial remedy.

Moreover, the Ninth Circuit's rationale promises to pave the way for further federal intrusion into areas which traditionally have been relegated to the states. It takes little imagination to predict the Ninth Circuit's next step, namely, to require public agencies--who have no authority or control over existing state law judicial and statutory remedies recognized in cases such as Parratt, supra, Hudson, supra, and numerous other circuit court decisions-

-to provide legal advice and information concerning how to pursue these remedies.[2]

CONCLUSION.

The petition should be granted.

DATED: January 19, 1998

Respectfully submitted,
PRISCILLA F. SLOCUM

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[2] Having been thwarted by this Court's efforts to expand federal rights under the substantive component of the Due Process Clause, it appears that some members of the Ninth Circuit are now attempting to expand federal rights under the procedural component of the Due Process Clause. In Carlo v. City of Chino, 105 F.3d 493 (9th Cir. 1997), the Ninth Circuit created a new avenue for constitutionalizing state law. The court of appeals, in an opinion authored by Judge Boochever, held that a violation of a state criminal procedure statute--which requires a police officer to provide a detainee with immediate post-booking telephone calls and on pain of criminal prosecution--gives rise to section 1983 liability under the "procedural" component of the Due Process Clause. The decision is currently pending before this Court in a Petition for Certiorari. Hector Guerra v. Mary Ann Carlo, No.97-715.

APPENDIX A

FOR PUBLICATION

UNITED STATES COURT OF APPEALS
FOR THE NINTH CIRCUIT

LAWRENCE PERKINS; CLARA PERKINS; APRIL PERKINS, a minor, by and through Lawrence Perkins, *Plaintiffs-Appellants,*	) No. 94-56365) D.C. No.) CV-93-07084-) SVW) OPINION
v.	
CITY OF WEST COVINA; Detective Ferrari; Detective Melnyk, *Defendants-Appellees.*	

Appeal from the United States District Court
for the Central District of California
Stephen V. Wilson, District Judge, Presiding

Argued and Submitted March 7, 1996
Submission Withdrawn April 30, 1996
Resubmitted September 30, 1996---Pasadena, California

Filed May 9, 1997

Before: William C. Canby, Jr., Robert Boochever, and Edward Leavy, Circuit Judges.

Opinion by Judge Boochever; Partial Concurrence and Partial Dissent by Judge Leavy

COUNSEL

Patrick S. Smith, Klass, Helman & Ross, Los Angeles, California, for the plaintiffs-appellants.

S. Frank Harrell, Franscell, Strickland, Roberts & Lawrence, Santa Ana, California, for the defendants-appellees.

OPINION

BOOCHEVER, Circuit Judge:

Lawrence, Clara, and April Perkins appeal the district court's grant of summary judgment on their 42 U.S.C. § 1983 suit against the city of West Covina, and the court's grant of qualified immunity to individual police officers. City detectives searched Perkins' home in connection with a murder investigation involving a former boarder. Perkins had difficulty securing the recovery of his property seized during the search, including cash and a starter pistol.

Perkins claims the individual officers violated his clearly established Fourth and Fourteenth Amendment rights during the search. He also claims that the city's notice of the procedure for retrieving the property, and the procedure itself, were inadequate, and therefore violated his right to due process. We affirm the district court's grant of summary judgment to the individual defendants on the ground of qualified immunity. We reverse the summary judgment in favor of the City, however, because we conclude that the City's policy

violated due process by failing to notify Perkins of the means of retrieving his seized property.

FACTS

On May 8, 1993, Julio Alberto Clark was shot to death at the home of Lashaun McDuffy in West Covina, California. When West Covina police searched McDuffy's residence, they found evidence linking McDuffy's boyfriend, Marcus Marsh (a.k.a. Marcus Winter) ("Marsh"), to the murder. They also found evidence of gang activity, a vial of rock cocaine, and $994.00 in cash.

McDuffy gave the police Marsh's telephone number, which the police traced to the home of the plaintiffs and appellants in this case, Lawrence, Clara, and April (a minor child) Perkins, at 531 Balham Avenue in La Puente, California. Another officer confirmed the address with Marsh's probation officer, and documents found in Marsh's car contained the same address. Marsh had rented a room from Perkins, although Perkins later stated that at the time of the search Marsh had moved out.

On May 20, 1993, Citrus Municipal Court Judge Dan Thomas Oki signed a search warrant authorizing a search of "all rooms, attics, basements, garages, and other parts therein" of four addresses, including Perkins' home. The warrant authorized a search for "any evidence of street gang membership or affiliation with a street gang," and "any firearms of the following caliber, 9MM. In addition. . .any and all firearms for which the person in possession of said firearms cannot tender proof of ownership at the time of service."

West Covina detectives David Melnyk, Michael Ferrari, Dan Nalian, and Lieutenant John Schimanski searched the Perkins' home on May 21. No one was home, and Detective Nalian later stated that he and the other officers did not know which was Marsh's bedroom. During the search, the officers seized gang photos (some depicting Marsh), paperwork belonging to Marsh, and an address book belonging to Lawrence Perkins. They also seized a twelve-gage shotgun and various kinds of ammunition. From the closet in a locked southwest bedroom, the officers seized a starter pistol and $2,469 in cash. Detective Ferrari testified that he reasoned it was evidence within the scope of the search warrant because the detectives had recovered narcotics and cash from McDuffy's house, and Detective Nalian stated that he considered the cash "evidence that Marcus Marsh, and perhaps other residents of the house were involved in illegal drug and gang related criminal activity."

The house was left in disarray, with damage to the doors and some personal items. The officers left a form entitled "Search Warrant: Notice of Service" ("the notice"). The notice stated:

To Whom it May Concern:

1. These premises have been searched by peace officers of the West Covina Police Department pursuant to a search warrant issued on 5-20-93, by the Honorable Dan Oki, judge of the Municipal Court, Citrus Judicial District.

2. The search was conducted on 5-21-93. A list of the property seized pursuant to the search warrant is attached.

3. If you wish further information, you may contact Det. Ferrari or Det. Melnyk at [telephone number].

The form also listed the name "Lt. Schimanski" and his telephone number. It did not include the search warrant number.

Lawrence Perkins ("Perkins") called Detective Ferrari that day; Detective Ferrari told him to call back a few days later. Perkins called back and came in to talk to Detective Ferrari, who told him that he had no objection to releasing the money, but Perkins would need to get a court order to get the property returned. Perkins testified, and Detective Ferrari denied, that Detective Ferrari said he would help Perkins get the property back if Perkins would testify against Marsh.

Perkins attempted to obtain the court order. About a month after the search, Perkins went to Citrus Municipal Court and asked to see Judge Oki, but was told Judge Oki was on vacation. He attempted to get another judge to release the property, but Perkins was informed that there was nothing under his name, and that he needed the number of the search warrant, or a case number in Marsh's case. Although Detective Ferrari believed he gave Perkins the search warrant number, Perkins testified that it was the wrong number. Perkins also testified that he was unable to get the correct warrant number at the court because the warrant was sealed and no file number was assigned. There was no

case number for Marsh because charges had not yet been filed. The search warrant, however, was listed in a public document with the court clerk by the address where the search occurred, along with the number of the search warrant. Perkins was apparently unaware of this, and no city employee informed him of the method for obtaining the number.

Perkins, Clara Perkins, and April Perkins filed suit in district court on November 19, 1993, against the city of West Covina, Detectives Ferrari and Melynk, Lieutenant Schimanski, and Los Angeles County. The complaint alleged that the individual defendants violated the Perkins' Fourth and Fourteenth Amendment rights under 42 U.S.C. § 1983 by their "arbitrary intrusion. . .into the security of plaintiffs' privacy" and their search without probable cause. The complaint also alleged that the city and county maintained "an official policy and custom of permitting the occurrence of the types of wrongs set forth hereinabove and hereafter," including failing properly to train officers, encouraging arrests without probable cause, procuring unlawful search warrants, and failing to investigate police misconduct, in violation of *Monell v. Department of Social Serv.*, 436 U.S. 658 (1978). The complaint asked for general and special damages, pain and suffering, punitive damages, and attorney fees. The city answered, asserting qualified immunity on behalf of the individual defendants, among other affirmative defenses.

The parties filed cross-motions for summary judgment in March 1994. The district court ordered defendants to file supplemental briefs regarding the procedure for obtaining release of seized monies. At

about the same time, the city filed a motion for the return of the property.

On May 12, 1994, the district court granted summary judgment for the city on the Perkins' *Monell* claim, and for all defendants on the claim that the warrant lacked probable cause. The court postponed a ruling on the qualified immunity of the individual officers.

The court also postponed a ruling on a claim against the city for failing to return the Perkins' seized property. Finding that "the City had a procedure for the return of unlawfully seized property; plaintiff needed only to obtain a court order. But, the City's procedure for the return of unlawfully seized property may be entirely inadequate in practice--plaintiff claims he could not obtain the court order," the district court suggested that these facts might be the basis of a due process claim not raised in the complaint, and asked for further briefing.

Trial was scheduled for June 14. The city returned the property (with the exception of the starter pistol, which had been reported stolen) on June 24, 1994, more than a year after it was seized.

On July 8, the district court granted summary judgment on all remaining claims in favor of the city and the detectives. (The county and Lieutenant Schimanski had been dismissed.) The order did not address the question whether the city's notice and procedure for recovery of seized property violated due process.

Perkins appealed. After oral argument, we remanded to the district court for determination of the due process issue. After supplemental briefing, the district court granted summary judgment for the city, holding that Perkins had waived his due process challenge to the city's procedures by failing to invoke a state statute providing for the return of improperly seized property, and that Perkins received adequate notice.

DISCUSSION

I. *Qualified immunity*

> A law enforcement officer is entitled to qualified immunity in a § 1983 action if the district court determines that, in light of clearly established principles governing the conduct in question at the time of the challenged conduct, the officer could reasonably have believed that the conduct was lawful. . . . First, the district court must determine whether the law governing the official's conduct was clearly established at the time the challenged conduct occurred. The second step then asks whether, under that clearly established law, a reasonable officer could have believed the conduct was lawful.

[1] *Mendoza v. Block*, 27 F.3d 1357, 1360 (9th Cir. 1994) (as amended) (citations omitted). The plaintiff bears the burden of showing that the right allegedly violated was clearly established at the time of the alleged misconduct. *Romero v. Kitsap County*, 931 F.2d 624, 627 (9th Cir. 1991). "[T]he law in question must be sufficiently clear that the unlawfulness of the action

would have been apparent to a reasonable official." *Chew v. Gates*, 27 F.3d 1432, 1447 (9th Cir. 1994), *cert. denied*, 115 S. Ct. 1097 (1995). This court reviews de novo the district court's decision on qualified immunity. *Elder v. Holloway*, 114 S. Ct. 1019, 1023 (1994).

[2] Perkins claims that the officers who searched his home acted unreasonably in seizing the currency and the starter pistol because neither was mentioned in the warrant, claiming "The general rule . . . is: if something is not described in the warrant, it cannot be seized." This is not an accurate statement of clearly established law at the time of the search. Instead, it was clearly established in 1993 that during a search, officers may seize an item not described in the warrant if they are in a lawful position to view the item, the item reasonably appears to be contraband, and the discovery of the item is inadvertent. *United States v. Washington*, 797 F.2d 1461, 1468 (9th Cir. 1986) (as amended). This "plain view" doctrine applies to the seizure of an item not listed in the warrant. *Arizona v. Hicks*, 480 U.S. 321, 326 (1987).

[3] Perkins does not seriously dispute that the "plain view" rule was clearly established at the time of the search. He implies, however, that the officers were not in a "lawful position" because they were in the southwest bedroom, which Perkins asserts was his and Clara Perkins' room. Yet the officers stated that they did not now whose room was whose when they entered the house, and the warrant authorized them to search all rooms. Perkins does not suggest that the discovery of the cash and pistol was other than inadvertent.

[4] Perkins also argues that, in light of clearly established law, the items "did not reasonably appear to be contraband." At the time of the search, it was clearly established that for a "plain view" seizure to be lawful, the officer must have probable cause to believe there is a nexus between the seized items and criminal activity. *Washington*, 797 F.2d at 1469. The criminal activity need not be that described in the warrant. *Id.* at 1468 (under search warrant related to drugs, permissible to seize items in plain view which reasonably appear to be related to prostitution).

A. *The cash*

The officers found the cash in the bedroom closet where they were searching for weapons and the other items listed in the warrant. Detective Ferrari stated that because he knew that Marsh lived part time at McDuffy's residence and the search there had uncovered gang photos, cash, and drugs, and because ammunition was found at Perkins' home as well, it seemed likely that the cash was evidence of criminal activity, perhaps drug trafficking. He also noted that because Perkins' house was humble, the presence of a large amount of cash was less consistent with noncriminal behavior. Detective Melnyk testified that his experience also led him to believe the cash was evidence of illegal activity.

[5] A large amount of cash may be evidence of intent to possess or distribute drugs. Several circuits had so held before the search in this case. *See, e.g., United States v. Garcia*, 983 F.2d 1160, 1165 (1st Cir. 1993) ($1,308); *United States v. Slater*, 971 F.2d 626, 637 (10th Cir. 1992) ($2,400). This circuit followed suit shortly after. *United States v. Soyland*, 3 F.3d 1312,

1315 (9th Cir. 1993)($4,600), *cert. dismissed*, 115 S. Ct. 32 (1994). Perkins cites, and we have found, no authority to the contrary. We conclude that the law was clearly established that large amounts of cash may be evidence of drug activity. We now consider whether the officers acted reasonably in the light of that rule.

[6] In each of the cases cited above drugs were also discovered. In this case the officers found no drugs in Perkins' home. Nevertheless, they had other reasons to connect the money to illegal activity: The discovery of drugs and cash at McDuffy's house, Marsh's relationship with McDuffy, Marsh's gang record, and the relatively large amount of cash relative to the Perkins family's apparent financial situation. Although--as was the case here--a large bundle of cash may turn out to be innocently earned, that does not mean that the detectives could not reasonably believe otherwise.

We hold that, in light of the law clearly established at the time of the search, the detectives could reasonably believe their seizure of a large amount of cash was lawful.

B. *The starter pistol*

It was clearly established in 1993, at the time of the search of Perkins' home, that a starter pistol is not automatically a firearm or deadly weapon. In *United States v. Dishman*, 486 F.2d 727 (9th Cir. 1973), this circuit held that carrying a starter pistol that would require retooling to convert it into an operating weapon likely to cause great bodily harm was not carrying a "deadly or dangerous weapon" per se, as described in air safety law. *Id.* at 732. We added, however, that "[o]f

course, the situation would be different if use were made of a starter pistol on an airplane." *Id.* Under those circumstances, its "use" might convert it into a dangerous weapon. *Id.* at 731-32.

The officers in this case do not claim that this particular starter pistol was a deadly weapon. Instead, an officer present at the search (but not individually named) submitted an affidavit stating that gang members sometimes brandish starter pistols during the commission of crimes, then claim that they had not intention to harm.

[7] Perkins cites no authority clearly establishing that a starter pistol could never be a firearm. Even considering that some starter pistols would not fall into that classification, it is reasonable to seize a starter pistol in plain view when an officer has a reason to believe that it has been or could be used in criminal or gang activity to frighten a victim. *See, e.g., United States v. Dzielinski*, 914 F.2d 98, 102 (7th Cir. 1990) (display of starter pistol during bank robbery justified upward departure at sentencing for apparent possession of dangerous weapon).

We affirm the district court's finding of qualified immunity.

II. *The due process claim against the city*

[8] In order to succeed in the claim against the city, Perkins must show "that the [c]ity adhered to a 'policy, practice or custom' that caused [him] to be deprived of [his] constitutional rights." *Pierce v. Multnomah County*, 76 F.3d 1032, 1039 (9th Cir.) (citing *Monell*), *cert. denied*, 117 S. Ct. 506 (1996).

[9] Although Perkins alleged in the complaint that West Covina had an official policy of permitting such wrongs as the execution of searches using unlawful warrants, he neither alleged nor produced facts in support of this claim. On appeal, he claims that the city policy that violated his constitutional rights was the failure to provide a reasonable procedure for the recovery of property seized pursuant to a search warrant, or alternatively, the failure to provide him with adequate notice of the procedure for recovery of the seized property. The city does not dispute that the procedure for obtaining the release of property and the practice of leaving a form written notice at a search site constitute city policy for which it is responsible under *Monell*.

We review de novo the district court's grant of summary judgment on the due process claim. *United States v. $874,938.00 U.S. Currency*, 999 F.2d 1323, 1325 (9th Cir. 1993) (per curiam).

A. *Procedure for return*

[10] The Fourteenth Amendment to the United States Constitution provides that no state shall "deprive any person of . . . property, without due process of law." "The Fourteenth Amendment places procedural constraints on the actions of government that work a deprivation of interests enjoying the status of 'property' within the meaning of the Due Process Clause." *Memphis Light, Gas & Water Div. v. Craft*, 436 U.S. 1, 9 (1978). Those procedural constraints require that the property's owner "be given notice and an 'opportunity to be heard at a meaningful time and in a meaningful manner.'" *Schneider v. County of San Diego*, 28 F.3d 89, 92 (9th Cir. 1994) (as amended) (quoting *Brock v.*

Roadway Express, Inc., 481 U.S. 252, 261 (1987)), *cert. denied*, 115 S. Ct. 1112 (1995). Although Perkins regained his property more than a year later, even "a temporary, nonfinal deprivation of property is nonetheless a 'deprivation' in the terms of the Fourteenth Amendment." *Fuentes v. Shevin*, 407 U.S. 67, 85 (1972).

[11] Procedural due process generally requires a hearing prior to deprivation, but a limited number of "extraordinary situations" justify postponing notice and the opportunity for a hearing until after the seizure of the property. *Id.* at 90-91. Those situations involve seizures that are necessary to an important public interest; present a special need for prompt action; and utilize legitimate force which the government strictly controls. *Id.* at 91. There is thus no requirement of a prior hearing before a seizure of possessions under a search warrant:

> First, a search is generally issued to serve a highly important governmental need--e.g., the apprehension and conviction of criminals--rather than the mere; private advantage of a private party in an economic transaction. Second, a search warrant is generally issued in situations demanding prompt action. The danger is all too obvious that a criminal will destroy or hide evidence of fruits of his crime if given any prior notice. Third, the Fourth Amendment guarantees that the State will not issue search warrants merely upon the conclusory application of a private party. It guarantees that the State will not abdicate control over the issuance of

> warrants and that no warrant will be issued without a prior showing of probable cause.

Id. at 93-94 n.30. In such situations,

> either the necessity of quick action by the State or the impracticality of providing any meaningful predeprivation process, when coupled with the availability of some meaningful means by which to assess the propriety of the State's action at some time after the initial taking . . . satisf[ies] the requirements of procedural due process.

Parratt v. Taylor, 451 U.S. 527, 539 (1981).

The city claims that the California Penal Code affords adequate post-deprivation process. Section 1536 of the Code provides:

> [A]ll property or things taken on a warrant must be retained by the officer in his custody, subject to the order of the court to which he is required to return the proceedings before him, or of any other court in which the offense in respect to which the property or things taken is triable.

[12] "Case law clearly establishes that both during and after the pendency of a criminal action, section 1536 empowers the court to entertain a summary proceeding by 'nonstatutory' motion, for the release of property seized under a search warrant." *People v. Icenogle*, 210 Cal. Rptr. 575, 577 (Ct. App. 1985). (In this case, the

motion filed by the city to obtain the release of Perkins' property was such a "nonstatutory" motion, citing § 1536.) Officers seizing property do so on behalf of the court for use in a judicial proceeding, and they must respond to court orders to release the property. *Id.* The officers have no right in the property or in its possession, and have no authority over it except as the court may order. *Oziel v. Superior Court*, 273 Cal. Rptr. 196, 201-02 (Ct. App. 1990).

[13] Perkins argues that a "nonstatutory" motion under § 1536 was not an adequate remedy. He claims his money could not have been released, because it was never introduced into evidence in a criminal case. The court has control over seized property, however, even when as in this case, the property is never used in the underlying criminal proceedings: "'[E]ven as to property not yet offered or received in evidence . . . judicial control still exists.'" *Id.* (quoting *Gershenhorn v. Superior Court*, 38 Cal. Rptr. 576, 579 (Ct. App. 1964)).

[14] California Penal Code § 1540 provides:

> PROPERTY, WHEN TO BE RESTORED FROM PERSON FROM WHOM IT WAS TAKEN. If it appears that the property taken is not the same as that described in the warrant, or that there is no probable cause for believing the existence of the grounds on which the warrant was issued, the magistrate must cause it to be restored to the person from whom it was taken.

Because one may secure a determination whether the property should be returned "immediately after the seizure . . . under section[] . . . 1540 of the Penal Code," this and other remedies such as mandamus "satisfy the requirements of due process. . . . The purpose of section[] 1540 is to provide one whose property is seized with a speedy remedy in a readily accessible court." *Aday v. Superior Court*, 362 P.2d 47, 53-54 (Cal. 1961). A motion to return is "expressly authorized" under the statute, *Gershenhorn*, 38 Cal. Rptr. at 578, and "[t]he determination may be had in advance of the trial of the criminal action which ordinarily follows the seizure." *People v. Bonanza Printing Co.*, 76 Cal. Rptr. 379, 381 (Ct. App. 1969). This motion is separate from a "nonstatutory" motion under § 1536. *Buker v. Superior Court*, 102 Cal. Rptr. 494, 497 (Ct. App. 1972).

[15] Perkins thus had available to him postdeprivation procedure for the return of his property--a "nonstatutory" motion under § 1536, and a § 1540 motion. We agree with the California Supreme Court that "[t]hese various remedies satisfy the requirements of due process." *Aday*, 362 P.2d at 54.

B. *Notice*

[16] Due process notice "must be of such nature as reasonably to convey the required information." *Mullane v. Central Hanover Trust Co.*, 339 U.S. 306, 314 (1950). The "notice" left at Perkins' home simply informed him that his home had been searched by the West Covina police department, with the date of the search warrant and the issuing judge and court, the date of the search, a list of the property seized, and the names

and telephone numbers of several officers of the police department to contact for "more information." The issue is whether due process required more: that the police notify Perkins of the availability of a judicial remedy should he wish to claim his property, and provide some guidance for invoking that remedy.

The Supreme Court faced a similar issue in *Memphis Light*. The plaintiffs, who were subject to multiple billing by the utility company, were unable to clear up the disputed charges despite visits to the company's offices, and their gas and electric service was terminated several times. The company had a procedure for the resolution of disputed bills, 436 U.S. at 6 n.4, but the notice of termination sent to the plaintiffs simply stated that payment was overdue and service would be cut off by a certain date; "No mention was made of a procedure for the disposition of a disputed claim." *Id.* at 13. The Court held that the notice was insufficient to satisfy due process:

> [The] notification procedure, while adequate to apprise the [plaintiffs] of the threat of termination of service, was not "reasonably calculated" to inform them of the availability of "an opportunity to present their objections" to their bills. *Mullane v. Central Hanover Trust Co.*, *supra*, at 314. The purpose of notice under the Due Process Clause is to apprise the affected individual of, and permit adequate preparation for, an impending "hearing." Notice in a case of this kind does not comport with constitutional requirements when it does not advise the

> customer of the availability of a procedure for protesting a proposed termination of utility service as unjustified. As no such notice was given respondents--despite "good faith efforts" on their part--they were deprived of the notice which was their due.

Memphis Light, 435 U.S. at 14-15 (footnotes omitted).

[17] Here, the notice left at Perkins' home did not mention the availability of any procedure for protesting the seizure of his property, let alone the existence of a formal judicial procedure for obtaining return. It did not provide essential information necessary to invoke that procedure: the search warrant number, the method for obtaining the number from the municipal court (such as the need to furnish the court with the address searched), or the necessity for a written request for return of the property. The notice was "skeletal," like the notice that the *Memphis Lights* court found unconstitutional. *Id.* at 15 n.15.

The city charges Perkins with the responsibility for his own confusion. It cites his failure to persist and to unearth the proper remedy and the method of its invocation. But Perkins, like the *Memphis Light* plaintiffs, made a number of telephone calls and at least two trips to the city's police station, one with his daughter, and a trip to the municipal court. While the police told him he needed a "court order," there is no evidence that they explained how to go about getting the correct warrant number, or pointed out the need for a written request. Perkin's efforts, though unavailing, were "good faith" efforts in light of the sketchy written

notice and the confusing and inaccurate information he received on his calls and visits. *See id.* at 17 n.19 (plaintiff's trips to utility office and some explanation by employees does not undermine holding that notice was inadequate); *Schneider*, 28 F.3d at 93 (notice citing incorrect statute number violated due process). Nor is it any answer that the city eventually released the property. It did so on its own motion, and only long after Perkins had filed this suit. A delayed response to a lawsuit after a plaintiff has resorted to litigation under 42 U.S.C. § 1983 is not evidence that due process was afforded.

"[D]ue process is flexible and calls for such procedural protections as the particular situation demands." *Morrisey v. Brewer*, 408 U.S. 471, 481 (1972). Seizure of property pursuant to a search warrant occurs "to thousands of [people] of various levels of education, experience, and resources" who should be clearly informed of the procedure for retrieving their property if it is not needed for the criminal proceedings. *See Memphis Light*, 436 U.S. at 15 n.15. People who are not suspected of criminal activity and whose property is seized are in particular need of detailed notice. As in this case, they may be uninvolved in the alleged criminal activity pursuant to which the government has seized their property without a predeprivation hearing. The "situation demands" written notice of how to retrieve the property. *See Aguchak v. Montgomery Ward Co.*, 520 P.2d 1352 1357 (Alaska 1974) (due process requires that written notice to legally unsophisticated and indigent defendants be more substantial, detailed, and easily understood). We find the written notice given by the West Covina Police Department was constitutionally inadequate.

[18] The dissent concedes that "in circumstances requiring a predeprivation hearing, notice of such a hearing or process is necessary." *See Parratt*, 451 U.S. at 538 (where established procedures under state law authorize deprivation of property, due process requires predeprivation notice and hearing). Nevertheless, the dissent argues that when the state may take property without predeprivation notice or hearing, due process does not require *any* notice of the procedures for the return of the property. But surely when there is no opportunity for predeprivation notice for hearing, the necessity of adequate postdeprivation notice of the means of securing the return of property is at least as compelling.

The remaining issue is what notice was due in this case. To identify the specific dictates of due process, we must consider (1) the private interest affected by the official action; (2) the risk of an erroneous deprivation of such an interest through the procedures used, and the value of additional safeguards; and (3) the government's interest, "including the function involved and the fiscal and administrative burdens that the additional or substitute procedural requirement would entail." *Mathews v. Eldridge*, 424 U.S. 319, 334-35 (1976).

The private interest in this case is in the possession and use of personal property, surely a significant interest. The risk of erroneous deprivation, especially in the emergency situations often underlying search warrants, is substantial. By contrast, the administrative and fiscal burden of providing adequate written notice is slight. The city already leaves a standard form of "notice" at the premises searched. The only burden involved is the formulation of

constitutionally adequate wording by including the relevant information on the notice.

[19] It is not our function to specify the exact phrasing of an adequate notice. In cases where property is taken under California law, however, the notice should include the following: as on the present notice, the fact of the search, its date, and the searching agency; the date of the warrant, the issuing judge, and the court in which he or she serves; and the persons to be contacted for further information. In addition, the notice must inform the recipient of the procedure for contesting the seizure or retention of the property taken, along with any additional information required for initiating that procedure in the appropriate court. In circumstances such as those presented by this record, the notice must include the search warrant number or, if it is not available or the record is sealed, the means of identifying the court file. It also must explain the need for a written motion or request to the court stating why the property should be returned.

The detailed implementation of these general requirements is left to the appropriate government agency. All that is necessary is that the notice be reasonably calculated to inform people of the means by which they may be able to secure the prompt return of their seized property.

III. *Perkins' right to trial*

Perkins argues that summary judgment violates his right to trial. This issue is frivolous. Summary adjudication of a case with no material issues of fact does not deprive a party of the right to trial. *See, e.g., Pease*

v. Rathbun-Jones Engineering Co., 243 U.S. 273, 278 (1917). Summary Judgment is an integral part of the federal rules, which are designed to ensure the just, speedy, and inexpensive determination of every issue. *Celotex Corp. v. Catrett*, 477 U.S. 317, 327 (1986) (quotations omitted). Because it determines only questions of law, summary judgment does not deprive the nonmoving party of its right to a jury trial. *See Itel Capital Corp. v. Cups Coal Co.*, 707 F.2d 1253, 1261 (11th Cir. 1983).

CONCLUSION

We affirm in part and reverse in part. We affirm the district court's grant of summary judgment to the individual defendants on the grounds of qualified immunity. Because we find the notice given Perkins did not meet the requirements of due process, we reverse the summary judgment in favor of the city and remand to the district court for the grant of summary judgment to Perkins on this issue, and for such further proceedings as may be necessary. Each party shall bear their own costs.

LEAVY, Circuit Judge, concurring in part and dissenting in part:

I concur in all of Judge Boochever's opinion except section II.B. I dissent from that section because I do not believe that due process requires "that the police notify Perkins of the availability of a judicial remedy should he wish to claim his property, and provide some guidance for invoking that remedy." By imposing a duty on the police officers to advise Perkins on matters of

state law, the opinion adds a due process requirement that has support neither in the case law nor in the Due Process Clause.

I would agree that in circumstances requiring a predeprivation hearing, notice of such a hearing or process is necessary. The Supreme Court's standard of "notice reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of the action," *Mullane v. Central Hanover Bank & Trust Co.*, 339 U.S. 306, 314 (1950), has been developed and applied in the context of *predeprivation* procedures. *See e.g., Mullane*, (publication notice of proceeding to settle trust funds accounts found to be inadequate); *Memphis Light, Gas & Water Div. v. Craft*, 436 U.S. 1 (1978) (notice of dispute resolution procedures prior to terminating utility service held to be inadequate); *Greene v. Lindsey*, 456 U.S. 444 (1982) (posted notice of eviction found to be constitutionally inadequate); *Schneider v. County of San Diego*, 28 F.3d 89 (9th Cir. 1994), *cert. denied*, 115 S.Ct. 1112 (1995) (due process violation where seizure notice did not state that abandoned vehicles would be destroyed). These requirements are inapplicable where, as here, Perkins' property was rightfully seized pursuant to a search warrant without need for a predeprivation proceeding.

Because Perkins' property was lawfully seized, due process requires "the availability of some meaningful means by which to assess the propriety of the State's action at some time after the initial taking." *Parratt v. Taylor*, 451 U.S. 527, 539 (1981). The majority concede that the postdeprivation procedures provided under California law "satisfy the requirements of due process . . . and conform with the requirements laid

down by the Supreme Court of the United States." Perkins' property was rightfully seized and held by the police, and California law provides a means for him to obtain return of his property. I cannot agree that due process requires the City of West Covina to advise Perkins of his remedies.

As the majority points out, Perkins brought this action in November 1993. In June 1994, Perkins' property was returned upon motion of the city. Surely the majority does not intend to allow recovery for deprivation of Perkins' property while he and his lawyer failed to seek its return. The Due Process Clause does not require the City of West Covina to provide legal advice to Perkins or any other person with a claim against the city.

APPENDIX B

UNITED STATES DISTRICT COURT
CENTRAL DISTRICT OF CALIFORNIA

FILED
May 10, 1994
Clerk, U.S. District Court
Central District of California
By Deputy

ENTERED
May 9, 1994
Clerk, U.S. District Court
Central District of California
By Deputy

LAWRENCE PERKINS, et al.
Plaintiffs,

v.
THE CITY OF WEST COVINA, et al.
Defendants.

CV 93-7084 SVW (CTx)

ORDER

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

Introduction

Presently before the Court is a civil rights action stemming from an allegedly unlawful search and seizure

in violation of plaintiffs' Fourth Amendment rights. The parties have filed cross motions for summary judgment.

Statement of Facts

Lawrence Perkins, Clara Perkins and April Perkins ("plaintiffs") reside at 531 Balham Street in West Covina. On May 21, 1993, their home was searched by police officers of the City of West Covina (the "City"). Among the officers present at the search were defendants Detective Ferrari, Detective Melnyk, Lieutenant Schimanski, Detective Aldecoa and Detective O'Brien (the "individual defendants").

On May 18, 1993, an individual named Julio Alberto Clark had been shot to death at the residence of Lashaun McDuffy. The police searched McDuffy's residence. They found evidence linking McDuffy's boyfriend Marcus Marsh (a.k.a. Marcus Winter) to the murder. They also found a vial of cocaine and $994.00 in cash.

McDuffy provided the police with Marsh's telephone number. This number was traced to plaintiffs' address, where Marsh had been boarding. On May 20, 1993, the Honorable Dan Thomas Oki signed a search warrant ordering the search of plaintiffs' house. The warrant authorized a search for "any evidence of street gang activity" as well as "[a]ny evidence of firearms of the following caliber: 9mm."

During the search, the police confiscated suspected gang clothing, paperwork belonging to Marsh and an address book belonging to Mr. Perkins. Furthermore, the police seized several guns and various types of ammunition. The parties dispute whether the police seized a pager as well.

After the search, the house was left in disarray. Several items were destroyed, including a clock radio, a flight bag, a smoke detector, a pair of binoculars, a

swimming pool and a waterbed cabinet. The officers confiscated $2,469.00 in cash and a starter pistol.

Several days later, Mr. Perkins contacted Detective Ferrari seeking return of the confiscated cash. According to Mr. Perkins, Detective Ferrari told Mr. Perkins that the cash would only be released if Mr. Perkins implicated Marsh. After Mr. Perkins refused to comply, Detective Ferrari stated that the cash could only be released with a court order. Detective Ferrari denies he told Mr. Perkins that he would release the cash if Mr. Perkins implicated Marsh. He does admit, however, that he told Mr. Perkins to obtain a court order.

Mr. Perkins attempted to obtain the order, but was informed that he could not do so without the number of the search warrant or, in the alternative, a case number for the case against Marsh. The warrant number could not be obtained because the warrant was sealed and no file number had been assigned, and there was no case number in the case against Marsh because charges had not been filed. Approximately one year later, the City returned the cash to Mr. Perkins.

Discussion

City of West Covina

Unlawful Search and Seizure

As a general rule, a municipality is not liable under 42 U.S.C. § 1983 on the basis of respondeat superior. Instead, the municipality will only be held liable if plaintiff shows that the violation resulted from an unconstitutional policy, practice or custom. See Monell v. Department of Social Serv., 98 S.Ct. 2018 (1978); accord St. Louis v. Praprotnik, 108 S.Ct. 915, 926 (1988). In order to prevail, plaintiff need not produce evidence of a written policy. Instead, plaintiff may produce evidence of a long and frequent pattern of constitutional deprivations, or, plaintiff may prove that

the unconstitutional action was taken by an individual with policy making authority. Monell, 98 S. Ct. at 2036. Furthermore, a custom or practice may be inferred where governmental officials act in deliberate indifference in refusing to sanction an employee for engaging in unconstitutional conduct. McRorie v. Shimoda, 795 F.2d 780 (9th Cir. 1986) (where plaintiff alleged that he was deprived of his liberty rights by prison guards, the appellate court overruled the dismissal of prison wardens as defendants, finding that plaintiff should have the opportunity to amend his complaint to state that wardens were aware of and were deliberately indifferent to the violations); accord Thompson v. City of Los Angeles, 885 F.2d 1439 (9th Cir. 1989).

In the present case, plaintiff has offered no evidence that unreasonable searches are condoned by the City of West Covina. Nor has plaintiff produced evidence of a pattern of unreasonable searches. Finally, plaintiff has failed to offer evidence that the City policy-making officials were aware of, but were deliberately indifferent, to the officers' conduct.

Accordingly, the Court must GRANT the City's motion for summary adjudication insofar as it seeks to state a claim against the City for the police officers' search of plaintiffs' residence.

Failure to Release Seized Property

Plaintiffs' claim against the City for failure to return his property after the City discovered that it was wrongfully seized presents a more difficult question. The Court postpones ruling on this issue pending further briefing by the parties.

Immediately after the seizure of the cash, Mr. Perkins sought to get it back. No City official objected to the return; in fact, Detective Ferrari instructed Mr. Perkins to obtain a court order. But, when Mr. Perkins

tried to obtain the court order, he was told that he needed a search warrant number or a case number. Because the warrant had been sealed, he claims he could not obtain the warrant number; because no charges had been filed against Marsh, there was no case number. In other words, although no one openly objected to the return of Mr. Perkin's money, and although the City had a "procedure" which Mr. Perkins could follow to get it back, Mr. Perkins could not follow the procedure.

As the undisputed facts currently stand, it seems unlikely that there is a Monell claim against the City for the unlawful seizure of the property. As discussed above, the City may only be held liable for the seizure if plaintiff proves that the City has a custom or policy of permitting such seizures, or that the officials were deliberately indifferent in failing to sanction the individuals responsible for the unlawful seizure. Plaintiff has presented no evidence which would establish such a practice. In fact, the evidence establishes that the City of West Covina has an established procedure to remedy unlawful seizures -- plaintiff may obtain a Court order upon a showing that the property was seized without probable cause.[1]

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[1] Although plaintiffs' theory of Monell liability is difficult to understand, plaintiff may be arguing that the City's failure to return plaintiffs' property amounted to a ratification of the unlawful seizure. If this is plaintiffs' theory, the Court finds it dubious, for it shows nothing more than an inefficient bureaucratic process. The mere failure to timely return property seized without probable cause is not tantamount to a policy which encourages such seizure; and accordingly should not make the City responsible for the officers' Fourth Amendment

On the other hand, the Court does find that the facts, as currently presented by plaintiff, may form the basis of a Due Process challenge, a cause of action not currently raised by plaintiff's complaint. The evidence shows that the City had a procedure for the return of unlawfully seized property; plaintiff needed only to obtain a court order. But, the City's procedure for the return of unlawfully seized property may be entirely inadequate in practice -- plaintiff claims he could not obtain the court order. The failure of a government body to provide adequate procedures for the return of unlawfully seized property may amount to a violation of plaintiffs' right to Procedural Due Process.[2] See e.g.

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violations.

However, if this is plaintiffs' theory, and plaintiffs have authority which supports the use of such a theory in establishing liability under Monell, plaintiffs should bring this to the Court's attention in further briefing.

[2] Notwithstanding the seal of the warrant, it would seem that a procedure should exist for obtaining the warrant number. If such a procedure existed and made available to plaintiff, and plaintiff simply failed to take advantage of it, then it would seem inappropriate for plaintiff to now claim that his right to procedural due process has been violated.

The parties should discuss the existence of such a procedure, and whether plaintiff could have followed such a procedure to obtain the return of his cash. The Court is aware that defendant has filed the supplemental affidavit of Detective Ferrari in which Detective Ferrari states that "to my knowledge" plaintiff could have

Matthews v. Eldridge, 424 U.S. 319 (1976); Hudson v. Palmer, 104 S.Ct. 3194, 3204 (1984) (finding that intentional deprivation of prisoners property did not amount to deprivation of due process rights where there was meaningful post-deprivation remedy).

In light of these observations, the parties should submit further briefs addressing the following issues:

(1) If plaintiffs intend to argue that the City is liable for the officer's Fourth Amendment violations on a Monell theory, plaintiff should further explain its basis for arguing that the City has a policy or custom of endorsing unlawful seizures. The parties should address the following questions: What evidence establishes that policy-making officials endorsed, ratified or were deliberately indifferent to the allegedly unlaw seizure? How can it be argued that the City's policy regarding the return of seized property amounts to a custom or practice of encouraging unlawful seizure of property?

(2) If plaintiffs intend to amend the complaint to include a Procedural Due Process challenge, plaintiff should discuss whether, in the present circumstances, the City's policy for the return of seized property complied with the requirements of the Due Process Clause. The parties should address the following questions: In the present circumstances, how could plaintiffs' have obtained timely return of their property? Did plaintiffs have any means of discovering the proper means of obtaining the timely return of their property? In light of precedent, what procedure is mandated by the Due Process Clause for ensuring the timely return of unlawfully seized property?

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obtained the number from the Court Clerk. This statement is without adequate foundation.

Individual Defendants

Search Without Probable Cause/Knock Notice

The Court finds that, as a matter of law, the magistrate had probable cause to issue the warrant for the search of plaintiffs house. Furthermore, plaintiff has produced no evidence that the officers failed to comply with the knock-notice requirements.

Accordingly, the Court GRANTS defendants motion for summary adjudication insofar as plaintiff stated a claim for search without probable cause and failure to comply with the knock notice requirements.

Unlawful Search

Plaintiffs have produced evidence that, in searching plaintiffs' residence, the individual defendants destroyed numerous items including a clock radio, a flight bag, a smoke detector, a pair of binoculars, a swimming pool and a waterbed cabinet. Plaintiff has also produced receipts establishing that replacement of the property would cost several hundred dollars.

The individual defendants, searched the residence for guns and gang paraphernalia, have failed to offer any explanation as to why destruction of plaintiffs' property was reasonable. Instead, defendants argue that the destruction was *de minimis*, and that, even if it were substantial, it cannot be the basis of a constitutional violation because it was, at worst, due to the negligence of the officers. Both arguments are spurious.

Defendants have failed to cited any Ninth Circuit precedent for the proposition that there is a *de minimis* exception to the Fourth Amendment. Instead, defendants have pointed to a case from the District of Alabama which states that "unreasonable conduct in some instances may not be actionable . . . where injury is too minor . . ." Williams v. Alford, 647 F.Supp. 1386, 1390 n. 3 (M.D. Ala. 1986). The holding of Williams,

which involved a finding following a court trial rather than a summary judgment, is inapposite to the present case. Plaintiff claimed that the officers had unreasonably destroyed his property. The court, weighing the evidence presented by plaintiff, found that he failed to meet his burden of proof because he produced no evidence of property damage other than "conclussory allegations." The Court expressly found:

> Based upon the evidence, this Court finds that this particular search was not unreasonable in light of the fact that officers acted pursuant to a warrant, no personal property was destroyed, and the door to plaintiff's house was repaired.

Id. 1389 (emphasis added). In the present case, plaintiff has produced more than a "mere allegation" of damage to personal property. He has presented photographs as well as receipts establishing significant damage. A trier of fact may choose to reject that evidence, but the Court cannot do so at this stage of the proceedings.

In short, reasonable trier of fact could conclude that the destruction of plaintiffs' property was intentional, significant and entirely unrelated to the officers' search objectives. Accordingly, summary judgment is DENIED.

Unlawful Seizure

Both parties have moved for summary judgment in regards to the seizure of the cash and the starter pistol.

Defendants argue that the seizure was legal under the plain view doctrine: not only did they have lawful access to the cash, but they had probable cause to believe that it was evidence of drug dealing. At the very least, defendants argue, they should be granted qualified immunity. Plaintiffs, on the other hand, argue that no

reasonable officer could believe that he had probable cause to seize the cash.

The Court disagrees with both positions. Several cases have upheld the seizure of cash as evidence of drug dealing. See e.g., U.S. v. Garcia 983 F.2d 1160 (1st Cir. 1993); U.S. v. Vargas, 945 F.2d 426 (1st Cir. 1991); U.S. v. Cooper, 942 F.2d 1200 (7th Cir. 1991); U.S. v. Gordils, 982 F.2d 64 (2nd Cir. 1992). However, all of these cases involved far greater sums of money than the present case. More importantly, in all of these the officers performing the search had discovered drugs at the premises searched along with the cash.

In support of defendants' argument for qualified immunity, defendants add several facts which, defendants argue, establish that a reasonable officer could have believed that there was probable cause to seize the cash. See Act UP!/Portland v. Bagley, 988 F.2d 868 (9th Cir. 1993). Specifically, defendants claim that they found evidence of drug dealing at McDuffy's residence prior to the search of plaintiff's residence and that they found pagers and guns at plaintiffs residence

The Court cannot rely on these additional facts for several reasons. First, only very small amount of drugs was seized at the McDuffy residence; and defendants have presented no evidence which links this finding to Marsh.[3] Second, plaintiffs dispute the fact that pagers were seized at their residence. Third, plaintiffs argue that the layout of their house was such that a reasonable officer searching the house would have

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[3] Importantly, the search warrant was obtained after the search of the McDuffy residence. It was written in very broad terms, but had no mention of drugs whatsoever.

known that the cash belonged to them and had no connection with Marsh.

The Court therefore postpones a ruling of qualified immunity pending jury resolution of the foregoing factual issues. Both plaintiffs' and defendants' motions for summary adjudication are hereby DENIED insofar as they apply to the allegedly unlawful seizure of plaintiffs' cash.

Conclusion

The City of West Covina's motion for summary adjudication is GRANTED insofar as plaintiffs have stated a claim against the City for the unlawful search of plaintiffs' residence. The Court declines to presently rule on the City's motion insofar as plaintiff has stated a claim for failure to return illegally seized property. The parties should submit further briefs by May 23, 1994.

The individual defendants' motion for summary adjudication is GRANTED insofar as plaintiffs have stated a claim for search without probable cause and failure to comply with the knock-notice requirement. The individual defendants' motion for summary judgment is DENIED insofar as plaintiffs have stated a claim for unreasonable search and seizure.

Plaintiffs' motion for summary judgment is DENIED.

IT IS SO ORDERED.

DATED: May 9, 1994

/s/ Stephen V. Wilson
STEPHEN V. WILSON
UNITED STATES DISTRICT JUDGE

APPENDIX C

UNITED STATES DISTRICT COURT
CENTRAL DISTRICT OF CALIFORNIA

FILED
August 3 1994
Clerk, U.S. District Court
Central District of California
By Deputy

ENTERED
August 4, 1994
Clerk, U.S. District Court
Central District of California
By Deputy

LAWRENCE PERKINS, et al.
Plaintiffs,

v.

THE CITY OF WEST COVINA, et al.
Defendants.

CV 93-7084 SVW (CTx)

JUDGMENT

1. Based upon the ~~special~~/s/svw verdict of the jury, dated June 28, 1994, it is hereby ORDERED, ADJUDGED, and DECREED that **JUDGMENT BE ENTERED** in favor of defendants Nalian, Heieck, Aldecoa, and O'Brien on all claims.

2. Claims against the City of West Covina, seeking to impose 42 USC § 1983 liability based upon Monell v. Department of Social Services, 436 U.S. 658 (1978) were dismissed pursuant to this Court's Order dated July 1, 1994.

3. Claims against all other individual defendants, including Ferreri, Melnyk, and Schimanski, were dismissed during trial, with prejudice.

IT IS SO ORDERED.

DATED: August 2, 1994

/s/ Stephen V. Wilson
STEPHEN V. WILSON
JUDGE OF THE U.S. DISTRICT COURT

Prepared by:
Jeff Giordano
FRANSCELL, STRICKLAND, ROBERTS & LAWRENCE
Attorneys for Defendants
CITY OF WEST COVINA, DETECTIVE MICHAEL FERRARI, DETECTIVE DAVID MELNYK, DETECTIVE DAN NALIAN, DETECTIVE DARIO ALDECOA, DETECTIVE JAMES O'BRIEN, DETECTIVE WAYNE HEIECK and LT. JOHN SCHIMANSKI

APPENDIX D

NOT FOR PUBLICATION
UNITED STATES COURT OF APPEALS
FOR THE NINTH CIRCUIT

FILED
April 30, 1996
U.S. Court of Appeals
By Cathy A. Catterson, Clerk

LAWRENCE PERKINS; CLARA PERKINS; APRIL PERKINS, a minor, by and through her Guardian ad Litem, Lawrence Perkins,
Plaintiffs-Appellants,

v.

THE CITY OF WEST COVINA, et al.
Defendants-Appellants.

No. 94-56365

DC No. CV93-7084 SVW

ORDER

Before: CANBY, BOOCHEVER, and LEAVY, Circuit Judges.

At the district court's suggestion, Perkins filed supplemental briefing dated May 23, 1994, regarding his claim that the city of West Covina violated 42 U.S.C. §

1983 and due process by failing to provide a reasonable procedure for the recovery of property seized pursuant to a search warrant. Defendants also filed supplemental briefs on the issue. On June 9, Perkins filed an ex parte motion to shorten time for hearing a motion to amend his complaint to include the due process issue, or, in the alternative, to include it in the pre-trial order. Defendants filed an opposition.

On June 22, 1994, the first day of trial, the district court ruled "the Due Process issue is bifurcated and not part of this phase of trial." The court's later order, dated July 1, 1994, and filed July 6, 1994, granted West Covina's motion for summary judgment on Perkins' § 1983 claim that the city condoned unlawful seizures of property. The court did not address, however, the procedural due process claim. The final judgment states that "Claims against the City of West Covina, seeking to impose 42 U.S.C. § 1983 liability based upon Monell v. Department of Social Services, 436 U.S. 658 (1978) were dismissed pursuant to this Court's order dated July 1, 1994."

We therefore remand to the district court for sixty (60) days for clarification of the status of the bifurcated claim that West Covina violated due process by failing to provide adequate post-deprivation procedure for the recovery of seized property. For this purpose, the district court is authorized to conduct such further proceedings as it may deem necessary to determine the status of the due process claim and, if the district court deems it feasible during the limited remand, to decide it. The district court is instructed, upon conclusion of its proceedings within the time prescribed for this remand, to advise this panel of the disposition of the due process claim in question, or of the fact that it remains pending.

Submission of this case is withdrawn pending further order of the court.

APPENDIX E

UNITED STATES DISTRICT COURT
CENTRAL DISTRICT OF CALIFORNIA

FILED
June 25, 1996
Clerk, U.S. District Court
Central District of California
By Deputy

ENTERED
July 8, 1996
Clerk, U.S. District Court
Central District of California
By Deputy

LAWRENCE PERKINS; CLARA PERKINS; APRIL PERKINS, a minor by and through her Guardian ad Litem, Lawrence Perkins,

Plaintiffs,

v.

THE CITY OF WEST COVINA, et al.
Defendants.

CV 93-7084 SVW
(9th Cir. No. 94-56365)

ORDER GRANTING DEFENDANTS' MOTION FOR SUMMARY JUDGMENT

On April 30, 1996, the Ninth Circuit remanded this case to this Court for sixty days "for clarification of the status of the bifurcated claim that West Covina violated due process by failing to provide an adequate post-deprivation procedure for the recovery of seized property." The Ninth Circuit directed this Court to "conduct such further proceedings as it may deem necessary to determine the status of the due process claim and, if the district court deems it feasible during the limited remand, to decide it."

Accordingly, the Court issued an Order stating that such claim in fact was not resolved during the prior proceedings, and the Court invited defendants to file a motion to summary judgment to attempt to resolve the claim during the limited remand. Defendants filed such a motion, plaintiffs filed a cross-motion for summary judgment, and a hearing was held on June 24, 1996. The Court has considered the arguments made by the parties and, for the following reasons, grants defendants' motion and denies plaintiffs' motion.

I. Background

The facts are as follows: On May 21, 1993, some property belonging to plaintiff Lawrence Perkins ("Perkins") was seized from his home by West Covina police officers during a search pursuant to a warrant. The seized property included a quantity of cash and a gun. (Perkins was never prosecuted, and his property was not introduced in evidence in the prosecution of the individual whom the police had been after when they searched Perkins' home.) The police left a form called "Search Warrant: Notice of Service" in Perkins' home after the search and seizure. Def. Exh. 2. This notice stated: "If you wish further information, you may contact Det. Ferrari" or another detective, and gave their phone number. It also identified the searching agency

(West Covina Police), gave the date of the warrant and of the search (May 20, 1993 and May 21, 1993), and identified the issuing court and judge (Dan Oki of the Citrus Municipal Court). Shortly after discovering his property missing, Perkins called Det. Ferrari and inquired about how to get his property back. Another detective informed Perkins that he needed a court order. Perkins Depo. 205:22-206:1.

Then, about a month after the search, Perkins went to the Citrus Municipal Court to try to get his property back. Perkins Depo. 206:5-208:2. He attempted to see Judge Oki, but was told that Oki was on vacation. He then attempted to get another judge to release his property, but was told the court had nothing under his name. Perkins did not submit any kind of written request, fill out any form, go back to the court on any other occasion, or make any other inquires in any manner. Id.

After this action had been pending for a few months, the City filed a request for release of Perkins' property, which a superior court judge signed on June 21, 1994. Perkins received his property (except for a starter pistol which the police retained because it had been reported stolen) on June 24, 1994.

II. Discussion

Perkins contends that California law did not provide him with an adequate means of obtaining the return of the seized property. If he is correct, he wins. If not, he loses. Wood v. Ostrander, 879 F.2d 583, 588 (9th Cir. 1989) ("Parratt v. Taylor, 451 U.S. at 541-44, 101 S. Ct. at 1916-17, and its progeny hold that a deprivation of liberty or property is not cognizable under § 1983 when a state's post-deprivation remedies are adequate to protect a victim's procedural due process rights.") The fact that procedures provided by state law

might be lengthy or speculative, uncertain or incomplete, does not mean they are inadequate under Parratt. Easter House v. Felder, 910 F.2d 1387, 1406 (7th Cir. 1990) (en banc) (citing Hudson v. Palmer, 468 U.S. 533, 104 S. Ct 3194 (1984)).[1] This is a difficult standard for a plaintiff to meet: state procedures are constitutionally adequate "unless the remedy which an injured party may pursue in state court can readily be characterized as inadequate to the point that it is meaningless or non-existent and, thus, in no way can be said to provide the due process relief guaranteed by the Fourteenth Amendment." Id. at 1406.

Critical to this case is the rule that "[a] person cannot state a claim for denial of procedural rights when he has elected to forego a complete hearing." Correa v. Nampa School Dist. No. 131, 645 F.2d 814, 817 (9th Cir. 1981); Riggins v. Bd. of Regents of Univ. of Nebraska, 790 F.2d 707. 711 (8th Cir. 1986) ("A state cannot be held to have violated due process requirements when it has made procedural protection available and the plaintiff has simply refused to avail himself of them [sic]"); Weinrauch v. Park City, 751 F.2d 357, 360 (10th Cir. 1984) ("Having ignored the available procedures, [plaintiff] is in no position to argue that they are unconstitutional"). The rationale behind this waiver rule is aptly illustrated by this case: when the plaintiff doesn't invoke the procedure, it is quite difficult for the court to determine how the procedure works or doesn't work, and thus to rule on its adequacy.

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[1] Plaintiffs argue that due process required that Perkins be afforded a pre-deprivation hearing before his property could be seized pursuant to the search warrant. The Court rejects this contention.

Here, defendants argue that a constitutionally adequate post-deprivation remedy exists, derived from Cal. Penal Code § 1536. That section provides:

> All property or things taken on a warrant must be retained by the officer in his custody, subject to the order of the court to which he is required to return the proceedings before him, or of any other court in which the offense in respect to which the property or things taken is triable.

In light of this section, police officers are not permitted to return seized property on their own. Rather, property may be released only pursuant to a court order. Section 1536 has thus been held to allow claimants to request the appropriate court to release their property. Such a request is known as a "non-statutory summary proceeding" or motion. See People v. Icenogle (Reiner), 164 Cal. App. 3d 620, 210 Cal. Rptr. 575 (Ct. App. 2 Dist. 1985).[2]

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[2] Plaintiffs misread Icenogle. In that case, a former criminal defendant was trying to get back $5680 seized from his home. Before he filed a § 1536 motion, though, the police had given the money to the federal authorities and it had been forfeited. The trial court ordered the police to return the seized cash or to pay Icenogle the same amount in cash. The court of appeal reversed, holding that since the trial court no longer had possession of the res, its order amounted to an award of damages which was not authorized in a criminal proceeding. 210 Cal. Rptr. at 577. Plaintiffs say that the claimant in Icenogle was in the same position as Perkins, and that Icenogle shows there is no procedure

Perkins argues that this procedure was not available to him because he did not know the number of the warrant pursuant to which his property was seized. Unfortunately for Perkins, there is no evidence either way about whether one must have the warrant number in order to obtain a court order releasing seized property. Defendants assert that it is not necessary, that as long as the claimant can sufficiently identify the property he seeks (i.e., by providing the date of the warrant, the name of the seizing agency and officer, and the identity of the issuing court and judge, all of which information was in Perkins' possession), the court will release it. Plaintiffs want the Court simply to assume that if Perkins had filed a request with the court, it would have been denied because he did not have the warrant number. But there is no evidence to support that speculation.

Hence the wisdom and necessity of the waiver rule: plaintiff bears the burden of showing the procedure to be inadequate, and if he does not invoke the procedure, he significantly handicaps the Court's ability to determine its adequacy. The Court believes that the waiver rule is fatal to plaintiffs' claim.

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available to get seized property back. Plaintiffs are mistaken. In this case, the state trial court continued to have jurisdiction to order the release of the property (as evidenced by the fact that it did exactly that when the City requested it to). The fact that the property was not introduced into evidence or marked as an exhibit has nothing whatever to do with whether the property remained "subject to the order of the court" under § 1536. See id. ("this is not an instance where the property at stake was in the possession of the court and thus was subject to a motion for release").

Perkins was told he needed a court order. He was told which court and judge to go to. It is not unreasonable to require him to submit some kind of written request in an attempt to test the adequacy of the procedure. Plaintiffs' counsel says "Lawrence Perkins tried desperately to get his property returned." Oppos. at 2. But that is an egregious mischaracterization of the evidence. As defendants say in their reply, "[t]he evidence shows at most that the plaintiff made one trip to the Municipal Court, was advised that there was no file in his name and ceased any efforts to obtain an order returning his property. He filed nothing, he made no inquiry about the procedures . . . ." Reply at 1.

Plaintiffs argue that Perkins' failure to invoke that § 1536 procedure should be excused because he was not given notice of it. But he was told that he had to get a court order to get back his property, he was told what court and what judge to go to, and he was given the date of the warrant and of the search. The Court believes that Perkins was given all of the information he needed in order to submit an informal written request to the court having jurisdiction over his property. The City's failure to give Perkins formal notice of the procedure did not render that procedure "inadequate to the point that it [wa]s meaningless or non-existent." Easter House, supra.[3]

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[3] Defendants also argue that state law provided two additional adequate remedies: a writ of mandate and an action for conversion. In view of the Court's holding that plaintiff has failed to show that the § 1536 procedure was constitutionally inadequate, the Court expresses no opinion as to these other two alleged procedures.

III. Conclusion

Even assuming arguendo that Perkins had no means of obtaining the warrant number, the procedure derived from § 1536 for release of property by court order was not such a clearly inadequate remedy as to excuse Perkins' obligation to attempt it. Since he did not do so, thus depriving the Court of the ability to evaluate its adequacy, the Court holds that plaintiffs have failed to prove that state law did not provide a constitutionally adequate remedy for the return of seized property. The Court therefore GRANTS defendants' motion for summary judgment dismissing plaintiffs' procedural due process claim, and DENIES plaintiffs' cross-motion for summary judgment on such claim. In accordance with the limited remand order, the Court will serve this Order upon the Ninth Circuit panel hearing the appeal in this action in order to advise it of the disposition of plaintiffs' procedural due process claim.

IT IS SO ORDERED.

DATED: June 24, 1996

/s/ Stephen V. Wilson
STEPHEN V. WILSON
UNITED STATES DISTRICT JUDGE

APPENDIX F

UNITED STATES COURT OF APPEALS
FOR THE NINTH CIRCUIT

FILED
October 22, 1997
By Cathy A. Catterson, Clerk
U.S. Court of Appeals

LAWRENCE PERKINS; CLARA PERKINS; APRIL PERKINS, a minor, by and through her Guardian ad Litem, Lawrence Perkins,
Plaintiffs-Appellants,

v.

THE CITY OF WEST COVINA, et al.
Defendants-Appellants.

No. 94-56365

DC No. CV93-7084 SVW

ORDER

Before: CANBY, BOOCHEVER, and LEAVY, Circuit Judges.

The panel, as constituted above, has unanimously voted to deny the petition for rehearing. Judge Canby, Boochever and Leavy, so recommended to vote to reject the suggestion for rehearing en banc.

The full court has been advised of the suggestion for rehearing en banc. An active judge requested a vote on whether to rehear the matter en banc. The matter failed to receive a majority of the votes of the nonrecused active judges in favor of en banc consideration. Fed. R. App. P. 35.

The petition for rehearing is denied and the suggestion for rehearing en banc is rejected.

APPENDIX G

Fourteenth Amendment of the United States Constitution, Section 1

"All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States and of the State wherein they reside. No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws."

APPENDIX H

The Civil Rights Act of 1871, 42 U.S.C. § 1983, *as amended by* Act of Oct. 19, 1996, 110 Stat. 3853.

"Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress, except that in any action brought against a judicial officer for an act or omission taken in such officer's judicial capacity, injunctive relief shall be be granted unless a declaratory decree was violated or declaratory relief was unavailable. For the purposes of this section, any Act of Congress applicable exclusively to the District of Columbia shall be considered to be a statute of the District of Columbia."

APPENDIX I

California Penal Code section 1536 (West 1985)

"§ 1536. Disposition of property taken; retention subject to order of court in which offense triable

All property or things taken on a warrant must be retained by the officer in his custody, subject to the order of the court to which he is required to return the proceedings before him, or of any other court in which the offense in respect to which the property or things taken is triable."

APPENDIX J

California Penal Code section 1540 (West 1985)

"§ 1540. Restoration of property; property not described in warrant; no probable cause

PROPERTY, WHEN TO BE RESTORED TO PERSON FROM WHOM IT WAS TAKEN. If it appears that the property taken is not the same as that described in the warrant, or that there is no probable cause for believing the existence of the grounds on which the warrant was issued, the magistrate must cause it to be restored to the person from whom it was taken."